



**THE POLICE COMMISSIONER
CITY OF NEW YORK**

**MEMORANDUM IN SUPPORT OF NYPD'S DEVIATION FROM
THE DISCIPLINARY SYSTEM PENALTY GUIDELINES**

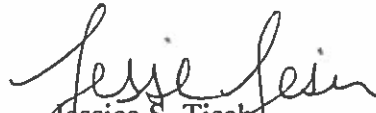
Re: Disciplinary Case No. 2022-25743 / PODS Case No. C-031929 regarding Police Officer James Weck

Date: November 19, 2025

This disciplinary matter was investigated by the Civilian Complaint Review Board ("CCRB") which involved allegations that Police Officer Weck interfered with an individual's use of a recording device and failed to provide his business card to individuals. CCRB has determined that a downward deviation from the Disciplinary System Penalty Guidelines is warranted.

I concur with the downward deviation for the reasons articulated by CCRB in the attached correspondence.

Therefore, the Charges and Specifications in this matter will be dismissed and Police Officer Weck will receive Training, as negotiated by CCRB.


Jessica S. Tisch
Police Commissioner



ERIC L. ADAMS
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
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Dr. MOHAMMAD KHALID
INTERIM CHAIR

February 26, 2025

The Honorable Jessica Trisch
Police Commissioner
New York City Police Department One Police Plaza
New York, NY 10038
VIA EMAIL

Re: *CCRB v. PO James Weck (CCRB Case no. 202008000, DADs no. 2022-25743, Tax no. 963803)*

Commissioner Tisch:

A negotiated settlement of a dismissal of the charge along with Department Imposed Training was agreed upon and signed by all the parties on January 17, 2025. Assistant Deputy Commissioner-Trials, Anne Stone endorsed the negotiated settlement on January, 30, 2025. This is a downward deviation from the NYPD's Disciplinary Matrix. CCRB offered this disposition for the following reasons:

1. PO Weck agreed to take responsibility for his misconduct.
2. While serving at PSA 7/807, PO Weck received recognition for Excellent Police Duty ten times and Meritorious Police Duty thirty-three times.
3. PO Weck has also been a member of service for eight years.
4. PO Weck Commanding Officers rates PO Weck's overall performance well above average.
5. The duration of the encounter was brief with limited impact upon the civilians involved
6. CCRB believes there is great potential for training to correct/rehabilitate the behavior.

While PO Weck has a disciplinary history, CCRB deems the recommended discipline appropriate for several reasons. This incident occurred on December 2, 2020, approximately four years ago. Police Officer Weck has been with the Department for eight years he has been recognized for excellent police duty ten times and meritorious police duty thirty-three times. Police Officer Weck's Commanding Officer, Captain Emmanuel Kwo rates Officer Weck's overall performance well above standards. Finally, the brief duration of this encounter and the limited impact upon the civilians involved are factors that CCRB considered in mitigating the recommended penalty and deviating from the Guidelines

While PO Visintin has a disciplinary history, CCRB deems the recommended penalty of NYPD imposed training is appropriate for several reasons. PP Visintin has been with the Department for

twelve years. He has been recognized for Excellent Police Duty six times, and Meritorious Police Duty twenty-one times. PO Visintin's Commanding Officer rates his overall performance well above standards. This incident occurred over four years. The encounter was brief with a limited impact upon the civilians involved.

Respectfully submitted,

Andre D. Applewhite
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Chief Prosecutor
NYC Civilian Complaint Review Board

Cc: Mike Martinez, Esq.